

Sonu Kumar vs The State Of Bihar on 9 September, 2024

IN THE HIGH COURT OF JUDICATURE AT PATNA

CRIMINAL APPEAL (DB) No.838 of 2024

Arising Out of PS. Case No.-168 Year-2018 Thana- BHAGWANGANJ District

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Sonu Kumar Son of Chhotelal Ram R/O Vill.- Karwan, P.S.- Bhawanganj,
Dist.- Patna

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Versus

1. The State of Bihar
2. Arun Kumar Rabani Son of Mithalesh Ram R/O Vill.- Angarpatra Kali Road, Modi, D.10 Number Sijua, P.s.- Jogata, Dist.- Dhanbad, Jharkhand.

... .. Respondent/s

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Appearance :

For the Appellant/s : Mr.Ajay Kumar Sinha, Adv.

For the Respondent/s : Mr.Parmeshwar Mehta, APP

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CORAM: HONOURABLE MR. JUSTICE VIPUL M. PANCHOLI

and

HONOURABLE MR. JUSTICE RUDRA PRAKASH MISHRA

ORAL ORDER

(Per: HONOURABLE MR. JUSTICE VIPUL M. PANCHOLI)

3 09-09-2024

Heard Mr. Ajay Kumar Sinha, learned counsel appearing on behalf of the appellant and Mr. Parmeshwar Mehta, learned Additional Public Prosecutor representing the Respondent-State.

2. This appeal has been filed on behalf of the appellant under Section 374(2) read with Section 389(1) of the Code of Criminal Procedure, 1973 against the judgment of conviction dated 26.06.2024 and order of sentence dated 27.06.2024 rendered by the learned Additional District & Sessions Judge-I, Patna in Sessions Trial No. 799 of 2019 arising out of Bhagwanganj P.S. Case No. 168 of 2018, whereby Patna High Court CR. APP (DB) No.838 of 2024(3) dt.09-09-2024 the appellant has been convicted for the offences punishable under Sections 341/34, 366/34 and 376 of the Indian Penal Code and sentenced to undergo Simple Imprisonment for one month for the offence punishable under Sections 341/34 of the Indian Penal Code, to undergo Rigorous Imprisonment for five years with fine of Rs. 2,000/- for the offence punishable under Sections 366/34 and in default of payment of fine to further undergo imprisonment for six months and he has further been sentenced to undergo Rigorous Imprisonment for 12 years with fine of Rs. 5,000/- for offence under Section 376(1) of the Indian Penal Code and in default of payment of fine to further undergo additional imprisonment for six months and all the sentences have been ordered to run concurrently and the period undergone by him during trial shall be set off.

3. The appeal has been admitted and at present learned counsel appearing for the appellant has prayed for bail and for suspension of sentence imposed by the learned trial court.

4. Learned counsel appearing on behalf of the appellant referred the deposition of the prosecution witnesses including the victim and, thereafter, contended that there are major contradictions, inconsistencies and discrepancies in the Patna High Court CR. APP (DB) No.838 of 2024(3) dt.09-09-2024 version given by the prosecution through the concerned witnesses. It is contended that for the alleged occurrence which took place on 4.12.2018, a written complaint was given on 20.12.2018. It is further submitted that a missing complaint was given as per the written report given by the father of the victim at Katras police station, district Dhanbad, however, a written complaint was surprisingly also given at Bhagwanganj police station, Sub-Division Masaudhi.

5. Learned counsel for the appellant referred the deposition of P.W.1 and thereafter contended that as per the P.W.1, who is father of the victim, the victim contacted him on mobile and narrated the story of abduction.

6. As per P.W.1, five persons named in the said deposition, abducted the victim in a car and took her to Masaudhi. However, as per the examination-in-chief of the victim P.W.4, she was abducted in an auto and taken to Dhanbad station and after she reached at the Dhanbad station, she became unconscious. It is, thereafter, contended that, in fact, the marriage of the victim was fixed with the present appellant and initial ceremony was also performed prior to marriage.

7. Learned counsel has also referred the cross- examination of the victim in which suggestion was made that Patna High Court CR. APP (DB) No.838 of 2024(3) dt.09-09-2024 the victim was constantly in contact with the present appellant on mobile phone and mobile numbers were also mentioned in the deposition of the victim. Learned counsel, therefore, urged that, in fact, the marriage of the victim was solemnized with the appellant and, therefore, the proceeding under Section 9 of the Hindu Marriage Act was also initiated/filed before the concerned court. Learned counsel thereafter, referred deposition of P.W.6, the Doctor, who had examined the victim. It is contended that the said doctor has subsequently admitted during cross-examination that no sign of violence or sexual abuse was found on the body of the victim. Learned counsel, therefore, urged that the present is a case wherein the appellant has been falsely implicated and, in fact, the appellant remained on bail during pendency of the trial and he had not misused the liberty granted to him.

8. On the other hand, learned APP has opposed the prayer for grant of bail by contending that the victim as well as the relative of the victim has supported the version of the prosecution. The victim was recovered from the house of the appellant when the police along with the relatives reached at the said place and, therefore, the defence taken by the appellant is not probable and believable.

Patna High Court CR. APP (DB) No.838 of 2024(3) dt.09-09-2024

9. It is further submitted that merely because the medical evidence does not support the version of the prosecution, the benefit of the same may not be given to the appellant at this stage and the theory of the prosecution may not be discarded.

10. We have considered the submissions canvassed by the learned counsel appearing for the parties. We have also perused the deposition of the prosecution witnesses and the material produced on record. Prima facie, from the deposition of the prosecution witnesses, it would emerge that there are major contradictions and inconsistencies in the theory of the prosecution. We have gone through the deposition of the P.W.1 and the Informant, who is the father of the victim, as well as the deposition of the P.W.4, the victim. The theory placed by the prosecution is prima facie inconsistent. Further, the medical evidence also does not prima facie support the version of the victim. It is also not in dispute that the marriage of the victim was fixed with the present appellant and initial ceremony was also performed prior to marriage. From the deposition given by the D.W.1, who is the father of the appellant, it is also revealed that now a proceeding under Section 9 of the Hindu Marriage Act has been filed by the appellant before the concerned Court. Patna High Court CR. APP (DB) No.838 of 2024(3) dt.09-09-2024 It is also not in dispute that the appellant was released on bail during pendency of the trial and now it is not the case of the prosecution that he had misused the liberty granted to him.

11. The present appeal is of the year 2024 and the same is not likely to be heard in near future. Thus, when the fix sentence of 12 years has been imposed by the trial court, we are of the view that the request made by the appellant for grant of bail and for suspension of sentence deserves consideration.

12. Accordingly, the appellant is ordered to be released on bail during pendency of the present appeal on executing bond of Rs. 15,000/- (Rupees Fifteen Thousand) and upon furnishing two sureties of the like amount each to the satisfaction of learned learned Additional District & Sessions Judge-I, Patna in Sessions Trial No. 799 of 2019 (CIS No. 799/2019) arising out of Bhagwanganj P.S. Case No. 168 of 2018 and the sentence imposed by the trial court is suspended qua the present appellant during the pendency of the appeal.

13. It is clarified that the aforesaid observations are the tentative observation made by this Court while considering request of the appellant for grant of bail.

14. The appellant shall co-operate in this court till disposal of the appeal.

Patna High Court CR. APP (DB) No.838 of 2024(3) dt.09-09-2024

15. The sentence shall remain suspended in the meanwhile. Realisation of fine shall remain stayed during the pendency of this appeal.

(Vipul M. Pancholi, J) (Rudra Prakash Mishra, J) rishi/-

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